

When relief is granted based on an attorney affidavit of fault, sanctions of reasonable compensatory legal fees and cost” to the opposing counsel or parties are mandatory. [C.C.P. §473(b).] The court may also impose sanctions against the culpable attorney of monetary sanctions up to \$1,000 to opposing parties, \$1,000 to the State Bar Client Security Fund, or “other relief as is appropriate.” (C.C.P. §473(c)(1)(A), (B) and (C).)

Entry of default was entered on 11.05.25 as to Defendant Dianne Dalton. Motion to Set Aside Default pursuant to CCP 473(b) was filed on 4.29.26, 5 months and 25 days from entry of the default. Defendant’s attorney Todd Fuson’s declaration provides sufficient indicators of mistake and neglect as required for mandatory relief.

Plaintiff’s Evidentiary Objections OVERRULED.

Motion to Set Aside Default and Clerk’s Judgment GRANTED.

Defendant’s proposed Answer attached as Exhibit A to the Motion shall be deemed filed as of the date of this Order.

OSC re default judgment is VACATED.

Default Judgment review is VACATED.

Request for Sanctions GRANTED. Defendant to pay Plaintiff’s counsel \$2989.82 (\$500/hr x 3 + \$1489.82 costs) within 30 days of this order.

Case Management Conference scheduled for 7.31.26. The parties are ordered to file with the Court ten days in advance of the CMC a joint declaration of counsel addressing their efforts to meet and confer in accord with Local Rule 3218 and Rules of Court, 3.724. The declaration should specifically address whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. The updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2502688	MIKER VS STATE OF CALIFORNIA	DEMURRER ON 1ST AMENDED COMPLAINT OF A. M., AS SUCCESSOR IN INTEREST TO AMANDA NENIGAR BY STATE OF CALIFORNIA

Tentative Ruling: In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal. 3d 120, 125). The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal. 4th 666, 672). However, a demurrer does not admit contentions, deductions or conclusions of fact or

law. (*Daar v. Yellow Cab Company* (1967) 67 Cal. 2d 695, 713). Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 606). If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318).

Special Relationship:

“As a general rule, a person who has not created a peril has no duty to come to the aid of another ‘no matter how great the danger in which the other is placed, or how easily he could be rescued, unless there is some relationship between them which gives rise to a duty to act. [Citations.]’ [Citation.] This rule applies to police officers as well as to other citizens: The police owe duties of care only to the public at large and, except where they enter into a “special relationship,” have no duty to offer affirmative assistance to anyone in particular. [Citations.]” (*Benavidez v. San Jose Police Dept.* (1999) 71 Cal.App.4th 853, 859-860.) An individual cannot recover for “injuries caused by the failure of police personnel to respond to requests for assistance, the failure to investigate properly, or the failure to investigate at all ...” (*Von Batsch v. Am. Dist. Tel. Co.* (1985) 175 Cal.App.3d 1111, 1122; *Clement v. Cal.* (1985) 40 Cal.3d 202, 212).

The special relationship doctrine was once thought to be “an expanding concept in tort law.” (*Mann v. State of California* (1977) 70 Cal.App.3d 773, 779.) However, it is now settled “that the special relationship rule is not expansive, as *Mann* suggested; rather, it is narrow, to be applied in a limited class of unusual cases.” (*Minch v. Department of California Highway Patrol* (2006) 140 Cal.App.4th 895, 905.) “The rule is not triggered ‘simply because police officers responded to a call for assistance and took some action at the scene.’ [Citations.] And it is not enough to assert that the law enforcement officers took control of the situation.” (*Ibid.*; accord, *Camp v. State of California* (2010) 184 Cal.App.4th 967, 977.) Special relationships between police and individual citizens do not exist unless (1) “an officer voluntarily assumes a duty to provide a particular level of protection, and then fails to do so [citations], or ... [(2)] an officer undertakes affirmative acts that increase the risk of harm to the plaintiff.” (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1129.)

In summary, “CHP may have a duty to members of the public to exercise due care when CHP voluntarily assumes a protective duty toward a certain member of the public and undertakes action on behalf of that member thereby inducing reliance, ... or when the actions of CHP place a person in peril or increase the risk of harm.” (*Greyhound Lines, Inc. v. Department of California Highway Patrol* (2013) 213 Cal.App.4th 1129, 1136.) “Nonfeasance that leaves the citizen in exactly the same position that he or she already occupied cannot support a finding of duty of care. Affirmative conduct or misfeasance on the part of CHP that induces reliance or changes the risk of harm is required.” (*Ibid.*)

“To create a special relationship and a duty of care, there must be evidence that the police [did something] ‘that induced a citizen’s detrimental reliance [citation], placed a citizen in harm’s way [citations], or lulled a citizen into a false sense of security and then withdrew essential safety precautions.’” (*Camp v. State of California* (2010) 184 Cal.App.4th 967, 978.) Notably, the Court’s minute order from the prior demurrer hearing (2/4/26) stated the following: “The complaint does not explain how the CHP officers induced reliance. There is likewise no explanation of the “detrimental” aspect of such

reliance. The notion of an increased risk of harm by staying in place is entirely absent from the complaint.” The FAC now contains additional factual allegations.

The FAC alleges Decedent called 911 to request emergency rescue. (FAC ¶¶ 20-23.) The 911 operators asked her to read aloud the GPS coordinates displayed on the Google Maps application on her phone, which she did. (FAC ¶¶ 24-25.) It is alleged that the operators told Decedent that her rescuers had her exact location and were being dispatched to find her. (FAC ¶ 27.) The operators instructed her to stay where she was so rescuers could find her quickly. (FAC ¶ 28.) The operators instructed Decedent not to continue to try and find her vehicle and to conserve her phone battery. (FAC ¶ 29.) It is alleged that Decedent was assured help was on the way and she would be located using the coordinates she provided. (FAC ¶ 30.) The FAC alleges that by giving assurances and directions, CHP affirmatively undertook responsibility for coordinating Decedent’s rescue and induced her to stop searching for her vehicle and rely on their instructions. (FAC ¶¶ 26, 31.) It is alleged Decedent complied with the instructions and remained where she was. (FAC ¶ 33.) The FAC alleges that if she had not been instructed to stay in place, she would have continued trying to reach her vehicle where she would have been able to drive away but, instead she waited for rescue that CHP assured her was coming. (FAC ¶¶ 34-36.)

The FAC alleges that the 911 operators are trained and required to convert Google Maps coordinates before providing them to search and rescue teams because the failure to do so could cause rescuers to search in the wrong location, which is what happened in this case. (FAC ¶¶ 37-42, 45.) It is alleged that CHP did not verify/confirm the coordinates nor convert them when rescuers were unable to find Decedent. (FAC ¶¶ 43-44, 46, 56-57.) The FAC alleges CHP’s actions left Decedent in a worse position than if they had taken no action at all. (FAC ¶¶ 51-53.) Plaintiffs allege CHP knew Decedent had been lost for two days, was physically distressed and stranded in the desert without water. (FAC ¶ 55.) And, that “Defendants’ conduct constituted an extreme departure from the ordinary standard of care and was performed in conscious disregard for the safety of a person known to be in imminent danger.” (FAC ¶ 58.) Based on these factual allegations, Plaintiffs have addressed the defects pointed out by the Court regarding the original Complaint.

Immunity under Health & Safety Code § 1799.107:

H&S Code § 1799.107 provides that “a qualified immunity from liability shall be provided for public entities and emergency rescue personnel providing emergency services.” (H&S Code, § 1799.107(a).) Subdivision (b) provides in relevant part: “[N]either a public entity nor emergency rescue personnel shall be liable for any injury caused by an action taken by the emergency rescue personnel acting within the scope of their employment to provide emergency services, *unless the action taken was performed in bad faith or in a grossly negligent manner.*” (CCP § 1799.107(b).) (emphasis added.) “For purposes of this section, it shall be presumed that the action taken when providing emergency services was performed in good faith and without gross negligence.” (H&S Code § 1799.107(c).) Under California law, “gross negligence” is only established by “the want of even scant care or an extreme departure from the ordinary standard of conduct.” (*Eastburn v. Regional Fire Protection Auth.* (2003) 31 Cal.4th 1175, 1186 [internal quotation omitted].) In *Eastburn*, the Court found that 911 emergency dispatchers are immune under H&S Code § 1799.107 absent a showing of bad faith or gross negligence. (*Id.* at 1185.)

Here, the FAC alleges that the 911 operators directed Decedent to stay where she was and to stop searching for her vehicle (FAC ¶¶ 27-28) while simultaneously misdirecting rescue efforts by failing to convert GPS coordinates before providing them to rescuers (FAC ¶¶ 37, 39), and then failing to correct those errors as rescue efforts failed for days. (FAC ¶¶ 52, 57.) What is missing are allegations that the 911 emergency dispatchers acted in bad faith or were grossly negligent to overcome the presumption that they provided services in good faith and without gross negligence. (H&S Code § 1799.107(c).)

CHP points out that advising a person in need of rescue to stay put is a well-established search and rescue practice as it gives rescuers a “fixed, predictable location to search”, which is the opposite of an extreme departure. (Oppo. p. 2:12-15.) CHP argues that this advice shows “ordinary care, indeed good judgment, not its abandonment.” (Oppo. p. 2:15-16.) CHP also argues that the failure to convert the GPS coordinates does not amount to gross negligence because it is only alleged that such a failure “can” cause rescuers to search in the wrong location. (Oppo. p. 2:26-3:1.)

As cited by CHP, “[t]o avoid a finding of gross negligence, it is not required that a public entity must pursue all possible options. It is required only that they exercise some care, that they pursue a course of conduct which is not “an extreme departure from the ordinary standard of conduct.”” (*Decker v. City of Imperial Beach* (1989) 209 Cal.App.3d 349, 361.) Moreover, “...where there are no facts showing an extreme departure from the ordinary standard of conduct, the gross negligence exception to immunity fails.” (*Mubanda v. City of Santa Barbara* (2022) 74 Cal.App.5th 256, 264; see also, *Eastburn*, *supra.* at p. 1185.) Plaintiffs’ factual allegations do not constitute gross negligence. As CHP points out, the FAC actually demonstrates that the 911 operators exercised some care according to their alleged actions – having Decedent read aloud her GPS coordinates, recording the coordinates, telling her to stay put so rescuers could find her quickly, telling her not to search for her car, and to conserve her phone battery, among other allegations. (FAC ¶¶ 24-25, 28-29.) Thus, CHP is entitled to the immunity provided in H&S Code § 1799.107.

Demurrer SUSTAINED with leave to amend. Plaintiff to file an amended complaint within 10 days. The court notes that Plaintiff still fails to plead facts sufficient to overcome immunity pursuant to Health and Safety Code § 1799.107.

Case Management Conference continued to 9.15.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2601596	LEON YUEN VS ROLAND MARKETING LLC	DEMURRER ON COMPLAINT OF ROONEY LEON YUEN BY ROONEY LEON YUEN

Tentative Ruling: No tentative ruling. Motion is continued.

The hearing on the demurrer is continued to 8.25.26. The parties are ordered to **meet and confer via in person, teleconference or phone** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Cross-Defendant shall identify the